

## 26TRCV00273 26TRCV00273

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-12

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Case Number: 26TRCV00273 Hearing Date: August 12, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –  
SOUTHWEST DISTRICT

Honorable Amy N. Carter Wednesday,  
August 12, 2026

Department M Calendar No.

PROCEEDINGS

Annelise Sherrill v. Skywest Airlines,  
Inc., et al.

26TRCV00273

1. Skywest Airlines, Inc.'s Motion to Stay

TENTATIVE RULING

Skywest Airlines, Inc.'s Motion to  
Stay is granted.

Background

Plaintiff filed the Complaint on  
January 26, 2026. Plaintiff alleges the following facts. Plaintiff was a former  
employee of Defendant. Defendant failed to provide proper break and rest  
periods. Defendant failed to compensate Plaintiff at the required rate for all

the hours worked. Defendant failed to provide accurate payroll records. Plaintiff alleges the following cause of action: 1. Violation of California Labor Code § 2698, et seq.

Request for Judicial Notice

Defendant's request for judicial notice is granted pursuant to Evidence Code section 452(d).

Motion to Stay

Code

Civ. Proc., § 187 states:

"When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this Code."

"It is black letter law that, when a federal action has been filed covering the same subject matter as is involved in a California action, the California court has the discretion but not the obligation to stay the state court action. [¶] In exercising its discretion the court should consider the importance of discouraging multiple litigation designed solely to harass an adverse party, and of avoiding unseemly conflicts with the courts of other jurisdictions. It should also consider whether the rights of the parties can best be determined by the court of the other jurisdiction because of the nature of the subject matter, the availability of witnesses, or the stage to which the proceedings in the other court have already advanced. The California Supreme Court also has isolated another critical factor favoring a stay of the state court action in favor of the federal action, a factor which happens to be present in this case—the federal action is pending in California not some other state." *Caiafa Prof. Law Corp. v. State Farm Fire & Cas. Co.* (1993) 15 Cal.App.4th 800, 804 (internal citations and quotations omitted).

Defendant

moves “to stay this action pending resolution of the federal putative class action proceeding between the parties. SkyWest brings this motion on the grounds that: (1) a stay is appropriate based on the doctrine of comity, given that a duplicative and overlapping case involving the same issues is pending in federal court; and (2) a stay would be in the interests of judicial economy and efficiency and would avoid duplicative and potentially inconsistent rulings.” (Notice of Motion, p. 1, lines 4-10).

The

Court determines that a discretionary stay is appropriate in this matter. While Plaintiff is correct that a PAGA class of action is not identical to the federal class action cause of action because Plaintiff in the instant action presents a representative action on behalf of the State of California rather than an action for individual claims, the policy reasons for entering a stay favors granting this motion. The same subject matter is at issue in both cases and the evidence that will be developed will be essentially the same. Substantial factual and evidentiary issues overlap and granting a stay would promote judicial economy and prevent the risk of inconsistent rulings. Thus, Plaintiff's contention that the class action lawsuit may not necessarily result in res judicata or collateral estoppel does not automatically preclude the Court from exercising its discretion to enter a stay.

As

to the first and second factors identified by *Caiafa Prof. Law Corp. v. State Farm Fire & Cas. Co.* (1993) 15 Cal.App.4th 800, Plaintiff was not precluded from filing and maintaining the PAGA action in federal court. While the Court has no reason to believe that filing this separate action in state court was solely to harass, the Court does find that a stay would avoid any potential conflict of rulings that are made in the federal court action. Again, the facts of both cases are essentially the same and the alleged violations are virtually the same. Having both cases proceed together has a potential for different outcomes and inconsistent rulings.

The

third factor of whether the rights of the parties can best be determined by the court of the other jurisdiction also supports entering a stay. Again, the federal court has asserted jurisdiction of the class action lawsuit, and the underlying allegations and claims are suited to be adjudicated there. Defendant would also be burdened by defending two substantially similar lawsuits simultaneously. Plaintiff, however, can maintain and present her individual

action in federal court with no relative prejudice from the stay. It is true that the State may suffer a slight burden by the stay, but, even that is speculative. In any event, the potential prejudice that the State would have in the delay in achieving justice is outweighed by the risk of inconsistent rulings and outcomes from maintaining both cases at the same time.

Defendant's

Motion to Stay is granted.

An

OSC re: status of federal court action - Sherrill v. Skywest Airlines, Inc. et al., 2:25-cv-03709 (E.D. Cal. Dec. 23, 2025) – is set for \_\_\_\_\_.

Defendant is ordered to give notice of this ruling.